



[Home](#) > [Policy Manual](#) > [Volume 2 - Nonimmigrants](#) > [Part E - Cultural Visitors \(Q\)](#) >

Chapter 3 - Filing and Documentation

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Guidance

[Resources \(19\)](#)

[Appendices \(0\)](#)

[Updates \(7\)](#)

A. Filing Process

A qualified employer or its designated agent may file a Petition for a Nonimmigrant Worker ([Form I-129](#)), with the Q-1 Classification Supplement and required fee, generally within the 6-month period before the participant's employment begins. A petitioner may include up to 25 named participants on one petition.^[1] A participant may provide services, labor, or training for more than one employer at a time, provided each employer files a separate petition.^[2]

A petitioner must file a new petition on Form I-129, with the applicable fee, each time it wants to bring in additional international cultural exchange visitors. Each person named on an approved petition will be admitted only for the duration of the approved program. Replacement or substitution may be made for any person named on an approved petition, but only for the remainder of the approved program.^[3]

B. Evidence

1. Evidence Relating to the Employer

The petitioner must provide evidence that demonstrates that the employer:

- Has designated a qualified employee as a representative who will be responsible for administering the program and will serve as a liaison with USCIS;
- Is actively doing business in the United States (for example, the regular, systematic and continuous provisions of goods or services, including lectures, seminars and other types



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- Will offer the participant(s) wages and working conditions comparable to those accorded local domestic workers similarly employed; and
- Has the financial ability to remunerate the participant(s).[\[4\]](#)

Evidence to demonstrate financial ability to remunerate the participants includes the organization's most recent annual report, business income tax return, or other form of certified accountant's report.

2. Evidence Relating to the Program

The petitioner must provide evidence that the employer maintains an established international exchange program that meets the factor listed in the Program Requirements section above.[\[5\]](#) In addition to the position description, evidence that can show the program has a cultural component which is an essential and integral part of the participant's employment or training may include:

- Catalogs;
- Brochures;
- Curriculum; or
- Any other evidence describing the program.

The program's cultural component must be designed, on the whole, to exhibit or explain the attitude, customs, history, heritage, philosophy, traditions, or other cultural attributes (arts, literature, language) of the participant's country of nationality.[\[6\]](#) If there are different locations, the petition must include an itinerary with the dates and locations of the services, labor, or training to be performed.[\[7\]](#)

Multiple Petitions in Same Calendar Year

When petitioning to repeat a previously approved international cultural exchange program, petitioners may submit a copy of the initial program approval notice in lieu of the documentation required with an initial filing.[\[8\]](#) Officers should request additional documentation only if clarification is needed.[\[9\]](#)

3. Evidence Relating to the Participants

The record must contain documentation of the following information for each participant:

- Date of birth;
- Country of nationality;
- Level of education;
- Position title; and
- Job description. [\[10\]](#)

The petitioner must verify and certify that the participants are qualified to perform the service or labor, or receive the type of training, described in the petition.^[11] In addition, the petitioner must report the participants' wages and certify they are offered wages and working conditions comparable to those accorded to local domestic workers similarly employed.^[12]

For petitions involving multiple participants, the petitioner must include the name, date of birth, nationality, and other identifying information required on the petition for each participant. The petitioner must also indicate the U.S. consulate at which each participant will apply for a Q-1 visa. For participants who are visa-exempt,^[13] the petitioner must indicate the port of entry at which each participant will apply for admission to the United States.^[14]

Finally, if the participant has spent an aggregate of 15 months in the United States as a Q-1 nonimmigrant, the petitioner must document that the participant has resided and been physically present outside the United States for the immediate prior year.^[15]

Footnotes

^[^ 1] See [8 CFR 214.2\(q\)\(5\)\(ii\)](#).

^[^ 2] See [8 CFR 214.2\(q\)\(5\)\(iv\)](#).

^[^ 3] See [8 CFR 214.2\(q\)\(5\)\(i\)](#).

^[^ 4] See [8 CFR 214.2\(q\)\(4\)\(i\)\(B\)](#), [\(C\)](#), [\(D\)](#), and [\(E\)](#).

^[^ 5] See [8 CFR 214.2\(q\)\(4\)\(i\)\(A\)](#).

^[^ 6] See [8 CFR 214.2\(q\)\(3\)\(iii\)\(B\)](#).

^[^ 7] See [8 CFR 214.2\(q\)\(5\)\(iii\)](#).

^[^ 8] See [8 CFR 214.2\(q\)\(4\)\(i\)](#).

^[^ 9] See [8 CFR 214.2\(q\)\(4\)\(iii\)](#).

^[^ 10] See [8 CFR 214.2\(q\)\(4\)\(ii\)\(A\)](#).

^[^ 11] See [8 CFR 214.2\(q\)\(4\)\(ii\)\(A\)](#).

^[^ 12] See [8 CFR 214.2\(q\)\(4\)\(ii\)\(B\)](#). See [8 CFR 214.2\(q\)\(11\)\(ii\)](#).

^[^ 13] See [8 CFR 212.1\(a\)](#).

^[^ 14] See [8 CFR 214.2\(q\)\(5\)\(ii\)](#).

[\[¹⁵\]](#) See [8 CFR 214.2\(q\)\(7\)\(iv\)](#).

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